

Mohd Arshad v. Purvanchal Vidyut Vitran Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench, Court No. 3 · 17 April 2023 · WRIT-C No. 12555 of 2023 · Pending clause 6.5 representation directed to be decided within four weeks.

HEADNOTE

Writ seeking bill rectification disposed of without any opinion on merits. Respondent no. 2 directed to decide the pending representation dated 01.03.2023 under clause 6.5 of the U.P. Electricity Supply Code, 2005, in accordance with law, within four weeks of production of a certified copy and the representation, after a reasonable opportunity of hearing.

FACTUAL SUMMARY

Mohd Arshad, a consumer of Purvanchal Vidyut Vitran Nigam Ltd., sought rectification of his electricity bill. He submitted a representation dated 1 March 2023 before respondent no. 2, which was still pending when he approached the High Court in Writ-C No. 12555 of 2023. On instructions, counsel for the licensees told the Court that respondent no. 2 would decide that representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, after giving the consumer a reasonable opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Pending bill-rectification representation

HOLDING

Where the consumer's representation dated 01.03.2023 seeking bill rectification and invoking clause 6.5 is already pending, the writ is disposed of without any opinion on merits, and respondent no. 2 is directed to decide that representation in accordance with law within four weeks of production of a certified copy of the order and a copy of the representation, after affording a reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The representation dated 01.03.2023 invoking clause 6.5 was pending; the licensee was directed to decide it on a hearing, in accordance with law, within four weeks. ¶ 1

6.5-pending-complaint-writ-remitted Because the clause 6.5 representation was already pending, the writ was disposed of without a counter-affidavit and without any opinion on the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE MERITS OF THE REPRESENTATION DATED 01.03.2023

The Court disposed of the writ without expressing any opinion on merits, leaving the representation to be decided under clause 6.5. ¶ 1